

J. GUIDANCE NOTES AND TERMS AND CONDITIONS

- PART I** applies to Applicants under the categories of *Sports Preferred Associate (including 'Special' Sports Preferred Associate) and Junior Associate*.
PART II applies to Applicants under the category of *Sports Debenture Associate* only (inclusive of portions of PART I as indicated).
PART III applies to Applicants under the category of *Sports Subscriber Associate* only (inclusive of portions of PART I as indicated).

PART I

- 1** By completing this Application Form the Applicant acknowledges that he or she has read, understood and accepted the terms and conditions set out in the appropriate PART hereof and that he or she is being proposed for a category of *preferred* Membership by a preferring sports Section or Designated Sports Association ("DSA") or the Sports & Recreation Sub-committee ("S&RSC") of the Hong Kong Football Club (the "Club"). *Preferred* means that the Applicant can, upon initial acceptance, obtain immediate temporary Membership and, subject to satisfactory performance of certain requirements and obligations, the Applicant can, in due course, obtain permanent Membership of the Club for an Entrance Fee which is substantially lower than that charged to a *non-preferred* Full Member. Therefore, **the Applicant's commitment to the Club is an essential feature of preferred Membership** and details explaining that commitment, and the various procedures to be followed, are set out below.
- 2** Sports Preferred Associates and Junior Associates must serve a period of *Temporary Preferred Membership* prior to becoming, if approved, permanent Members. A Sports Preferred Associate Applicant can become a Full Member (Sports Preferred). An Applicant under 28 years of age can be confirmed as a Junior Associate until reaching 28 years of age; for subsequent progress to Full Member (Sports Preferred) see **Paragraph 8**.
- 3** This Application will initially be considered by the Membership Sub-Committee (the "MSC") for recommendation to the General Committee of the Club and, if found in order and approved, the Applicant will be allocated a Temporary Preferred Membership Account Number. The Membership Services Department will then write a letter to the Applicant offering preferred Membership and explaining the formalities, such as payment of the Entrance Fee (or initial deposit), setting up auto-pay for Monthly Subscriptions and bills, arrangements for further photograph(s), etc. The Applicant will also be required to sign **a Pledge Form confirming his or her commitment to support the preferring sports Section, DSA or Recreational Sport concerned, and the Club, for a period of 4 years** (for Junior Associates who will attain 28 years of age within 4 years, or Sports Debenture Associates, who do not proceed to Full Membership (Sports Preferred), such period shall sooner terminate at age 28, or after 3 years, respectively). 'Special' Sports Preferred Associates shall be obliged to commit to the provision of the benefit to the relevant sport (where such benefit is of an ongoing nature) for the appropriate period. A Membership Card (and Cards for any dependants) will then be issued to the Applicant, the Account will be activated, the commitment period will commence on that date and full use of the Club facilities will be available to the Applicant and any dependants. The Applicant will have **14 days** from the date of that letter to take up the offer of preferred Membership, failing which the offer will automatically lapse.
- 4** The Membership Services Department will inform Applicants where the Club's constitutional documents can be accessed, which includes the Memorandum and Articles of Association, Bye-laws (and other information of the Club) as well as a copy of the Bye-laws of the preferring sports Section, DSA or Recreational Sport concerned. By accepting the offer of preferred Membership, **the Applicant acknowledges that he or she is bound by and will observe the provisions of the Club's constitutional documents**. It should be noted that an Associate Member is not a Full Member and is therefore not eligible to vote at General Meetings of the Club or to hold certain Offices within the Club (among other restrictions).
- 5** **The period as a Temporary Preferred Member will generally be in the order of up to 12 months.** This provides an opportunity for the Applicant to assess the Club and for the Club and the preferring sports Section, DSA or S&RSC to assess the Applicant. Any outstanding balance of the Entrance Fee must be paid to the Club not later than 12 months after activation of the Account.
- 6** The Applicant will be expected to support the preferring sports Section, DSA or Recreational Sport by participating in training, matches, Club tournaments and social events and to generally become actively involved in the preferring sports Section, DSA or Recreational Sport and Club life as a whole. The justification for offering *preferred* Membership is that the Applicant will be of value to the preferring sports Section, DSA or Recreational Sport concerned, and the Club generally. **If the Applicant fails to demonstrate adequate commitment to the preferring sports Section, DSA or Recreational Sport concerned, and the Club during this period, without good reason, that may result in the preferring sports Section, DSA or S&RSC withdrawing its support for the Applicant's Membership or the MSC making a negative recommendation (in which case, upon confirmation by the General Committee, the Membership will be terminated).** For 'Special' Sports Preferred Associates, the benefit to the relevant sport must be fully provided.
- 7** Towards the end of the period as a Temporary Preferred Member, upon the recommendation of the preferring sports Section, DSA or S&RSC, **the Applicant will be invited to attend before an interview panel** convened by the MSC. The Applicant will normally be given not more than *two opportunities* to attend, failing which the Membership may be automatically terminated.
The panel will consider reports from the preferring sports Section, DSA or S&RSC as well as the Applicant's spending record and any disciplinary matters reported by the Management of the Club. The panel will be looking to confirm that the Applicant is of suitable character for permanent Membership and that the Applicant's commitment is being satisfactorily performed. It will question the Applicant about his or her involvement in the preferring sports Section, DSA or Recreational Sport concerned, and the Club generally. **The Applicant may also be tested on knowledge of the Club's Bye-laws.** Spending records are an indication of use of Club facilities and sociability and, whilst it cannot be defined with accuracy, and there are many variable circumstances, the spending record at Food and Beverage (F&B) outlets in the Club should be commensurate with the Applicant's financial ability (a student Junior Associate Applicant would not be expected to have any significant spending in the Club, whereas a professional, in mid career, might be expected to have an above average spending record). The existence of a Spouse/Partner would be expected to increase such spending record. It should be realised that the free sporting facilities provided by the Club depend largely upon expenditure in the Club's F&B outlets. **The monthly spending record at the Club's F&B outlets for a single adult Member in usual circumstances should not be less than a sum equivalent to the Monthly Subscription he or she is charged (and this will be used as a basis).** Upon commencement of Temporary Preferred Membership, applicants will be subject to the appropriate monthly minimum F&B spend. Applicant's accounts will be debited accordingly, with any actual F&B spend during any given month, throughout the commitment period. If an applicant has not met the appropriate minimum F&B spend, the outstanding balance will be automatically charged to the Member's account. For clarification, F&B spend is limited to spend at F&B outlets and the Club kiosk only.
- 8** The MSC interview panel will put forward its recommendation to the General Committee, which will decide whether the Applicant shall be granted permanent Membership. If unsuccessful, the Temporary Preferred Membership will be terminated. If successful, the Applicant shall be granted Full Membership (Sport Preferred) or Junior Associate Membership will be confirmed for Applicants under 28 years of age, and a new Account Number and Card will be issued. Junior Associates, upon reaching 28 years of age, may, upon approval by the General Committee, be granted Full Membership (Sports Preferred) provided that a letter of support is received from the preferring sports Section, DSA or S&RSC, the current Entrance Fee for Full Membership (Sports Preferred) is paid, any interview required by the MSC is attended and the Applicant acknowledges by addition to his or her Pledge Form to serve a further 4 year commitment period (on the terms applicable under this PART I).
- 9** **During the remainder of the period of commitment, the preferring sports Section, DSA or S&RSC, and the Club, will continue to monitor the Applicant's commitment. Should it be determined that the Applicant has failed, without good reason, to honour his or her commitment, the consequences set out in Paragraph 6. for Temporary Preferred Members may apply. If the commitment period is interrupted by a period of Absent Membership, serious injury or other circumstances, the MSC may require the Applicant to extend his or her commitment period accordingly by addition to his or her Pledge Form.**

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10 If, at any time, after the admission of an Applicant as a Member, the General Committee shall become aware that such Applicant has been admitted on the basis of information made available which is inaccurate or misleading or that information pertinent to such admission was not made available at the time of application for admission, it shall, after enquiry and notice to the Applicant, have authority to terminate such Membership forthwith.

11 In the event that Membership is terminated under **Paragraphs 6., 8. or 9.**, or Full Membership (Sports Preferred) or confirmed Junior Associate Membership is declined by the Applicant, or the Applicant resigns his or her Membership, all Monthly Subscriptions will be forfeited and:

i For Junior Associate Applicants, Entrance Fees will be forfeited;

ii For Sports Preferred Associate Applicants, Entrance Fee deposits will be forfeited in respect of each period of Membership as follows:

Period of Membership	Up to 2 months	3 - 6 months	7 - 9 months	10 - 12 months
Refund of Deposit	100%	80%	50%	0%

Anyone paying by instalments, no refund is payable.

In the event that Membership is terminated under **Paragraphs 10.**, or suspended or terminated for disciplinary reasons, Entrance Fee deposits and Monthly Subscriptions will not be refunded.

In the event that Membership is terminated, the Applicant agrees not to seek any form of compensation from the Club, or any Member thereof, by way of loss of privileges or otherwise.

12 The Applicant may apply to have his or her name placed on the Absent Members' List during the period of commitment provided that the balance of the commitment must be taken up within five years of being entered on the Absent Member's List, failing which, at the discretion of the General Committee, his or her name will be removed from the Absent Members' List and shall cease to be a Member. A Junior Associate will have his or her name automatically removed from the Absent Members' List upon reaching 28 years of age, unless granted Full Membership (Sports Preferred) under **Paragraph 8.**

PART II Sports Debenture Associates

13 **Paragraph 1.** of **PART I** shall apply.

14 **Paragraph 3.** of **PART I** shall apply, except that the Applicant will be allocated a Sport Debenture Associate Account Number and no Entrance Fee (or initial deposit) is payable, and the Applicant may be required to attend before an interview panel convened by the MSC.

15 **Paragraph 4.** of **PART I** shall apply.

16 The period as a Sport Debenture Associate may not exceed a total of 3 years. A preferring Section or DSA may apply at any time in the 3-year period for the endorsement of the General Committee to the termination of the Applicant's Membership.

17 **Paragraph 6.** of **PART I** shall apply.

18 During the period of commitment the preferring sports Section or DSA, and the Club, will monitor the Applicant's commitment. The Applicant's attention is drawn to those matters to which the interview panel of the MSC will have regard mentioned in **Paragraph 7.** of **PART I**. Consideration will be given to reports from the preferring sports Section or DSA, spending levels and discipline throughout the period of commitment.

Paragraph 9. of **PART I** shall apply.

19 **Paragraph 10.** of **PART I** shall apply.

20 In the event that Membership is terminated for any reason, or suspended for disciplinary reasons, Monthly Subscriptions will not be refunded. The Applicant agrees not to seek any form of compensation from the Club, or any Member thereof, by way of loss of privileges or otherwise.

21 Sports Debenture Associate may, upon approval by the General Committee, be granted Full Membership (Sports Preferred) at any time after two years of the three-year period provided that a letter of support is received from the preferring sports Section or DSA, the Entrance Fee for Full Sports Preferred Membership is paid, any interview required by the MSC is attended and the Applicant acknowledges by addition to his or her Pledge Form the balance of any commitment period to be served to equate to a total of 4 years (on the terms applicable under **PART I**).

22 A Sports Debenture Associate may not apply to have his or her name placed on the Absent Members' List.

PART III Sports Subscriber Associates

23 The first sentence of **Paragraph 1.** of **PART I** shall apply, with the addition thereto of "or by the Club itself".

24 This Application will be considered by the Membership Sub-Committee for recommendation to the General Committee of the Club and, if found in order and approved, the Applicant will be allocated a Sports Subscriber Associate Account Number. The Membership Services Department will write a letter to the Applicant offering preferred Membership and explaining the formalities such as setting up auto-pay for monthly bills, arrangements for photograph(s), etc. A Membership Card (and Cards for any dependants) will then be issued to the Applicant, the Account will be activated, the Membership will commence on that date and full use of the Club's facilities will be available to the Applicant and any dependants. The Applicant will have **14 days** from the date of that letter to take up the offer of preferred Membership, failing which the offer will lapse.

25 **Paragraph 4.** of **PART I** shall apply, with the addition of "if applicable." at the end of the first sentence.

26 The Membership will be automatically terminated on each anniversary of the commencement date, unless the sponsorship is renewed in at least the minimum annual amount applicable.

27 **Paragraph 10.** of **PART I** shall apply.

28 In the event that the Applicant's employer (or other entity) providing the relevant sponsorship wishes the Membership to be terminated at any time, or to substitute another person for the Applicant, upon receipt by the Club of written notice to that effect the Membership will be terminated (and any substitute shall be subject to the provisions of this **PART III**, including submission of an Application Form and shall, upon payment of a transfer fee equivalent to the Club's charge for a change of Nominee for a Corporate Subscribership, take up any unexpired period of the original Applicant's Membership).

29 In the event that Membership is terminated under **Paragraphs 26., 27. or 28.**, or is suspended or terminated for disciplinary reasons, sponsorship will not be refunded. The Applicant agrees not to seek any form of compensation from the Club, or any Member thereof, by way of loss of privileges or otherwise.

30 A Sports Subscriber Associate may not apply to have his or her name placed on the Absent Members' List.